

between plaintiff and Hyundai of Roseville. As a result, defendants may not compel arbitration by the terms of the 2005 agreement, as the 2010 agreement superseded all prior agreements via an integration clause.

Conclusion

Based on the foregoing, the court denies defendants' motion to compel arbitration of plaintiff's claims and denies defendants' motion to stay the action. Defendants shall file their answer by July 6, 2026.

22. S-CV-0056703 Casebolt Flynt, Elizabeth v. Whitely, Jesse

Defendants' Motion to Strike Portions of Plaintiff's First Amended Complaint

Defendants' motion to strike portions of plaintiff's first amended complaint is dropped as moot in light of the filing of the second amended complaint.

Defendants' Demurrer to Second Amended Complaint

Defendants demur to the third and fourth causes of action alleged in the second amended complaint for negligent misrepresentation and intentional misrepresentation.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

To state a claim for negligent misrepresentation, plaintiff must allege the following elements: misrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, with intent to induce another's reliance on the fact misrepresented; ignorance of the truth; justifiable reliance on the misrepresentation by the plaintiff; and resulting damage. (*Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 983.) To state a claim for intentional misrepresentation, plaintiff must allege the following elements: a misrepresentation, with knowledge of its falsity, with the intent to induce another's reliance, actual and justifiable reliance, and resulting damage. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166.)

Negligent and intentional misrepresentation must be pleaded with sufficient particularity that shows "how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Against a corporate

defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821, 838.)

The demurrer is sustained with leave to amend as to the third and fourth causes of action. Plaintiff fails to allege each element of these claims with requisite specificity. Any amended complaint shall be filed and served on or before July 10, 2026.

23. T-CV-0002801 Kern, Gregory v. Weber, Anne Marie

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Dismiss in Part and to Continue Trial

Plaintiff moves to dismiss defendant Jon G. Jensen from this unlawful detainer action, to continue proceedings against defendant Anne Marie Weber, and to set new trial dates as against defendant Anne Marie Weber.

Plaintiff's motion lacks merit. Plaintiff cites to authorities pertaining to a post-judgment claim of right to possession, which are inapplicable because this case involves a pre-judgment claim of right to possession. Plaintiff argues judicial economy and the public policy behind summary unlawful detainer proceedings would best be served by permitting dismissal of defendant Jensen and permitting the case to proceed against defendant Weber. However, the court questions how two separate and distinct trials could serve judicial economy. The court questions how dismissal of Jensen and trial against Weber could serve the public policy behind unlawful detainer proceedings when the primary purpose of the action—recovery of possession of the premises—would be frustrated by the continued possession of Jensen.

The motion is denied without prejudice. The court schedules this matter for a case management conference on **July 23, 2026, at 9:00 a.m. in Department 3.**
